

Andhra Pradesh Project Affected Lands Assignment Rules, 1961

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State of Andhra Pradesh - Act

Andhra Pradesh Project Affected Lands Assignment Rules, 1961

ANDHRA PRADESH

India

Andhra Pradesh Project Affected Lands Assignment Rules, 1961

Rule ANDHRA-PRADESH-PROJECT-AFFECTED-LANDS-ASSIGNMENT-RULES-1961 of 1961

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Andhra Pradesh Project Affected Lands Assignment Rules, 1961

Last Updated 6th June, 2019

In exercise of the powers conferred by Section 172 of the Andhra Pradesh (Telangana Area) Land Revenue Act, 1317 Fasli (Act VIII of 1317 Fasli), the Governor of Andhra Pradesh hereby makes the following rules

1.

These rules may be called the Andhra Pradesh Project Affected Lands Assignment Rules 1961.

2.

In these rules, unless the context otherwise requires

(2)

"Projects under investigation" means projects for the investigation of which provision has been made in the Five Year Plan.

3.

(1)

Assignment of project affected lands, shall be made subject to the payment of such market value as was taken credit for, in the final estimates of the project concerned, in their unirrigated condition: Provided that the value does not exceed the price which the lands may fetch, if sold at the time of assignment

(2)

No assignment of lands affected by projects under execution will be made until the alignment of the main channels and distributaries is indicated by the Chief Engineer and the claims of the persons whose lands might be required for the purpose of the project are settled.

4.

Assignment of lands covered by Projects under investigation may be made subject to the liability of the assignee to pay such land value as may be fixed by the Board of Revenue, having regard to their un irrigated condition at the date of assignment. No refund of land value collected for the assignment of lands under a project under investigation will be made even though the project may not ultimately be executed. A condition to this effect shall be incorporated in the order of assignment relating to these lands.

5.

Market value shall be collected in twenty instalments together with the interest thereon. The Board of Revenue shall be the authority to determine the market value payable by the assignees of project affected lands and the assignee shall be liable to pay betterment contribution in addition to the market value.

6.

The assignment of project affected lands shall be subject to the condition that the Government may resume if they are required for project works only. Provided, however, that in the event of resumption, the market value, if any, collected from the assignee shall be refunded to him but no compensation shall be payable to him for any improvement that might have been made by him to the land.

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